

25STCV02510 25STCV02510

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Case Number: 25STCV02510 Hearing Date: September 15, 2026 Dept: B

Hon. Victor

Avila, Dept B

Motion to Quash Service of Summons

Hearing Date: 8/3/26

CASE NO.: 25STCV02510

CASE NAME: First United Methodist Church
of San Gabriel v. Ogami, et al.

Moving Party: Specially Appearing Defendant Denizbank
A.S.

Responding Party: Unopposed

Notice: Sufficient

Ruling: DENY as moot.

NOTICE

The Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 3:30 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this

matter/motion. The tentative ruling will

become the ruling of the court if no argument is received. Notice may be given either by email at BurDeptB@LACourt.org or by telephone at (818) 260-8422.

Parties must appear on all other matters scheduled for this case.

BACKGROUND

This is an embezzlement action. Plaintiff

First United Methodist Church of San Gabriel, California (Plaintiff) is a church which operates a school known as Kodomo No Ie (the School).

On January 29, 2025, Plaintiff filed the initial Complaint. On April 10, 2025, Plaintiff filed the First Amended Complaint (FAC) alleging eight causes of action against 14 defendants including defendant Denizbank A.S. (Defendant). In the FAC Plaintiff alleged six of action including (1) Conversion, (2) Violation of the Racketeer Influenced Corrupt Organizations Act, 18 U.S.C. §1961, (3) Declaratory Relief, (4) Unjust Enrichment, (5) Constructive Trust and (6) Accounting against Defendant.

On Juen 30, 2026, Defendant, specially appearing, filed the instant motion to quash service of summons. Plaintiff did not file an opposition. On July 20, 2026, the parties filed a stipulation signaling they were hoping to resolve the issue outside of the presence of the Court.

On August 28, 2026, Plaintiff filed a request for partial dismissal of the FAC only as to defendant Denizbank A.S.

LEGAL

STANDARD

“Service of process, under longstanding tradition in our system of justice, is fundamental to any procedural imposition on a named defendant.” (AO Alfa-Bank v. Yakovlev (2018) 21 Cal.App.5th 189, 202.) “To establish personal jurisdiction, compliance with statutory procedures for service of process is essential.” (Kremerman v. White (2021) 71 Cal.App.5th 358, 371.) A defendant’s knowledge of the action does not dispense with the statutory requirements for service of summons. (Kappel v. Bartlett (1988) 200 Cal.App.3d 1457, 1466.)

"A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow," may move "to quash service of summons on the ground of lack of jurisdiction of the court over him or her." (Code Civ. Proc., § 418.10(a)(1).) A defendant has 30 days after the service of the summons to file a responsive pleading. (Code Civ. Proc., § 412.20(a)(3).)

"When a defendant challenges the court's personal jurisdiction on the ground of improper service of process, 'the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.'" (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.) Filing of a proof of service that complies with the applicable statutory requirements creates a rebuttable presumption of proper service. (Am. Express Centurion Bank v. Zara (2011) 199 Cal.App.4th 383, 390.)

DISCUSSION

Here, because

Plaintiff has filed a request for dismissal against Defendant, who is the moving party of the instant motion to quash service, the motion is moot.

Accordingly, the motion to quash service is DENIED as moot.

CONCLUSION

AND ORDER

Specially appearing Defendant Denizbank

A.S.'s Motion to Quash Service of Summons is DENIED as moot.

MOVING PARTY is to give notice.